



MUST SELL ADDENDUM



Seller: _____
 Buyer: _____
 Property: _____
 Agreement of Sale Date: _____ Addendum Date: _____

1. This Agreement is contingent upon the Buyer obtaining a satisfactory Agreement of Sale on Buyer's current property identified as: _____, (hereafter known as the "Must Sell Property") on or before 11:59 pm _____ (date). Should the Buyer be unable to obtain a satisfactory Agreement of Sale on the "Must Sell Property" by the above date, or should final settlement on the Buyer's "Must Sell Property" not occur on or before 11:59pm _____ (date) (Contingency Period) this Agreement shall become null and void, in which event all deposits shall be returned to the Buyer, in accordance with the provisions set forth in this Agreement of Sale.

2. During the period of this contingency, the Buyer's "Must Sell Property" shall be exclusively listed with _____ and is to be competitively priced according to a fair market valuation. Buyer, in good faith, will furnish Seller or Seller's agent with a copy of the executed exclusive listing agreement for Buyer's "Must Sell Property". If Buyer does not provide such listing agreement now or within _____ days of the ratification date of this Addendum, this Agreement may be declared null and void by the Seller, in which event all deposits shall be returned to the Buyer, in accordance with the provisions set forth in this Agreement of Sale. If Buyer enters into an Agreement of Sale for Buyer's "Must Sell Property", Buyer shall provide Seller or Seller's agent with a copy of such Agreement of Sale on the "Must Sell Property" within three 3 days of ratification thereof and shall promptly notify Seller or Seller's agent of any material changes thereto.

3. If Buyer's Agreement of Sale on the "Must Sell Property" is terminated, Seller shall from that time forward have the right to terminate this Agreement by tendering written notice of that election to Buyer or Buyer's Designated Agent provided, however, that if Buyer shall provide the Seller or Seller's agent with a copy of another Agreement of Sale on the "Must Sell Property" prior to any such written notice of termination, then this Agreement shall remain in full force and effect, and Seller's right to void this Agreement as a result of the Seller's first Agreement of Sale on the "Must Sell Property" being terminated shall be deemed waived. If Seller elects to terminate this Agreement as set forth in this section, and Buyer is not then otherwise in default of the terms of this Agreement, all deposit money shall be returned to Buyer in accordance with the provisions set forth in this Agreement of Sale.

4. Seller retains the right to continue to market their property for sale during the Contingency Period stated above. If another acceptable Agreement of Sale is received by the Seller during this Contingency Period, the Buyer shall have three (3) days from receipt of written notification to Buyer, to satisfy and remove this contingency in accordance with the provisions set forth in this Agreement of Sale. Buyer or Seller, if there be more than one, expressly agree that notice to one shall be notice to all.

5. To satisfy and remove this contingency, Buyer must, within three (3) days of receipt of this notice:

(A.) Provide written financial information clearly evidencing Buyer's financial ability to close this transaction without the sale of the "Must Sell Property", or

(B.) Provide Seller with a written mortgage commitment, including appraisal, which is not subject to the sale and settlement of the Buyer's "Must Sell Property" and provide evidence of the balance of funds necessary to complete settlement, or

(C.) Provide other information, satisfactory to seller, clearly evidencing Buyer's financial ability to close this transaction without the sale of the "Must Sell Property" and pay the balance of funds necessary to complete settlement.

6. In the event that Buyer is unable or unwilling to satisfy and remove this Must Sell Addendum, Seller may declare this Agreement of Sale null and void in which event all deposits shall be returned to the Buyer, in accordance with the provisions set forth in this Agreement of Sale.

7. Immediately upon satisfying and removing removal of this Must Sell Addendum, Buyer shall make an additional deposit of \$ _____ to be applied towards the purchase price.

8. Additional Terms:

9. The singular forms "Buyer" and "Seller" are used in this Agreement solely as a convenience and are intended to include all parties who are Buyers or Sellers.

Buyer	Date
Buyer	Date
Seller	Date
Seller	Date

NOTIFICATION PAGE MUST SELL ADDENDUM

Seller _____
Buyer _____
Property _____
Agreement of Sale Date _____ Must Sell Addendum _____

SELLER NOTICE OF INITIATION

Seller hereby gives written notice to Buyer that another satisfactory Agreement of Sale on the Property has been received and hereby gives Buyer the required notification according to Section 4 of the Must Sell Addendum.

Seller	Date/Time
Seller	Date/Time

BUYER RECEIPT OF NOTICE

Buyer	Date/Time
Buyer	Date/Time

REMOVAL OF "MUST SELL ADDENDUM"

The parties agree that the above Must Sell Addendum has been satisfied by providing documentation in accordance with Section 5 of the Must Sell Addendum. The Must Sell Addendum is hereby removed except for Buyer's obligation to pay the additional deposit. All other terms and conditions of the Agreement of Sale remain in effect.

Buyer	Date
Buyer	Date
Seller	Date
Seller	Date

VOIDING OF AGREEMENT OF SALE

Buyer is unable or unwilling to remove the Must Sell Addendum. The parties hereto do now declare this Agreement of Sale to be null and void. All deposit money is being refunded to Buyer in accordance with the provisions set forth in the Agreement of Sale.

Buyer	Date
Buyer	Date
Seller	Date
Seller	Date